

8	Hart vs. Providence Mission Hospital - Laguna Beach 2024-01451053	Motion for Summary Judgment and/or Adjudication Continued to 08/17/2026
9	Hernandez vs. Winn Incorporated 2025-01456223	Motion to Compel Arbitration Off Calendar. Stipulation for Arbitration filed. ADR Review Hearing set 12/07/2026.
10	Lomeli de Facio vs. Sodexo, Inc. 2020-01162342	Motion to Compel Physical/Mental Examination Defendant Peter Rendon’s motion to compel an independent mental examination of Plaintiff Felixitas Lomeli De Facio is denied. The motion is not timely. Code Civ. Proc., § 2024.030 provides that the discovery cut-off for expert witnesses is 15 days before trial and the motion cutoff is 10 days before trial. A “continuance or postponement of the trial date does not operate to reopen discovery proceedings.” (Code Civ. Proc., § 2024.020(b).) When trial was continued from 5/4/26 to 8/31/26, the Court did not also continue the discovery deadlines to track with the new trial date. (ROA 842.) The parties both acknowledge in the briefing that this motion is being brought past the deadline. Defendant requests relief from the foregoing statutes pursuant to Code Civ. Proc., § 2024.050. The purposes of California's discovery statutes are, among other things “to assist the parties and the trier of fact in ascertaining the truth; to encourage settlement by educating the parties as to the strengths of their claims and defenses; to expedite and facilitate preparation and trial; to prevent delay; and to safeguard against surprise.” (<i>Beverly Hospital v. Superior Court</i> (1993) 19 Cal.App.4th 1289, 1294–95.) Courts are to “construe the statutes time limitations in a way which is consistent with” these purposes. (<i>Id.</i> at 1295.) There is a time limit imposed on discovery “to expedite and facilitate trial preparation and to prevent delay.” (<i>Id.</i>) Absent a cutoff date (such as 30 days before trial), “the parties could tie up each other and

the trial court in discovery and discovery disputes right up to the eve of trial or beyond....to be effective the cutoff date must be firm or some litigants will manipulate the proceedings to avoid the cut-off date.” (*Id.*)

Defendant Rendon argues that while its co-defendant, Sodexo, conducted a mental examination of Plaintiff with its expert, Rendon has not yet been able to do so prior to the discovery cut-off through no fault of its own, and is entitled to as a matter of right.

Rendon’s arguments are unavailing.

First, the record reflects that previously Plaintiff underwent a mental examination by an expert (Dr. Lavid) designated by *both Rendon and Sodexo*. (Etemadi Decl., ¶¶ 2, 3, Exs. A, B.)

Thereafter, Rendon retained separate counsel from Sodexo. Current counsel for Rendon states that she attended the deposition of Plaintiff’s expert, Bennet Williamson, Ph.D. on 12/16/25, who had criticisms of Dr. Lavid’s methodology, causing counsel to determine that Rendon should retain its own expert. (Rice Decl., ¶¶ 7, 11.)

The facts as presented to the Court do not demonstrate diligence.

Plaintiff initially served its First Amended Complaint in December of 2020, asserting causes of action for harassment and retaliation in violation of the FEHA, as well as intentional infliction of emotional distress and alleges that she “has suffered and will continue to suffer physical injuries, pain and suffering, and extreme and severe mental anguish and emotional distress....” (FAC, ¶ 70.) These allegations should have put Defendant on notice that a mental examination would likely be warranted.

Despite this and discovery that was conducted over the past several years regarding these allegations, Rendon filed its initial expert designation on 12/15/25, stating that it was not retaining any expert witnesses. (Rice Decl., Ex. F.) The Court presumes that Rendon planned to rely on Sodexo’s experts’ testimony at trial. However, Defendant does not offer any information as to when exactly did Rendon decided differently and why at that point did Rendon not seek out its own experts.

Waiting to serve notice of the instant IME until 3/10/26 shows a lack of diligence in defending against Plaintiff’s claims. (Rice Decl., ¶ 2.)

		With respect to the merits of Defendant’s request for leave to conduct its IME, the Court finds good cause to be lacking. As noted above, Rendon already conducted a mental examination of Plaintiff through its then-expert at the time, Dr. Lavid. Therefore, Rendon’s statement that it “has not yet exercised his right to an IME,” is not accurate. (Motion at pg. 9.) Furthermore, Rendon’s suggestion that it “can take an IME under Code of Civil Procedure section 2032.220(a) as a matter of right,” is also wrong. Only in a personal injury case can a defendant compel a plaintiff to submit to a <i>physical exam</i> (not a mental exam) without a court order. (Code Civ. Proc., § 2031.220.) Leave of Court is required for a mental examination, and good cause must be shown. (Code Civ. Proc., §§ 2031.310(a); 2032.320(a).) Plaintiff argues that there is good cause because Plaintiff’s expert Dr. Williamson criticized Dr. Lavin’s examination. (Rice Decl., ¶¶ 7, 9, Ex. G, pp. 34:10-38:20; 39:12-40:1.) The disagreement between experts on proper methodology does not constitute good cause. Accordingly, Defendant Rendon’s motion is denied. Plaintiff shall give notice.
11	Nguyen vs. Lim 2023-01335514	Motion to Be Relieved as Counsel of Record Off Calendar as moot. Substitution of Attorney filed.
12	Nour vs. Al-Khanji 2024-01373153	Motions to Be Relieved as Counsel of Record On the motions of the Law Offices of Mark Martinez, by Mark Martinez, counsel of record for defendants (1) Mark El Khanji and (2) Zeina Sous for orders relieving it as counsel for each of Defendants, there are no proofs of service on plaintiff Hansaa Noor in the file. If counsel files a proof of proper service prior to the hearing, the motions will be granted. Otherwise, they will be continued for service of the motion papers on Plaintiff – along with service of notice of continuance on Plaintiff and Defendants. If the required proof of service is filed, the court will interlineate the new trial date into the proposed orders and will signed the amended orders.